

26VECV02782 26VECV02782

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-17

Motion: DEFENDANTS' DEMURRER TO PLAINTIFF'S COMPLAINT

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Case Number: 26VECV02782 Hearing Date: September 17, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

PHIL DIGENNARO,

Plaintiffs,

vs.

ENTERTAINMENT PARTNERS, INC.;

CENTRAL CASTING, INC.; and DOES 1

through 50, inclusive,

Defendants.

CASE NO:26vecv02782

[TENTATIVE] ORDER RE:

DEFENDANTS' DEMURRER TO PLAINTIFF'S COMPLAINT

Dept. W

8:30 a.m.

September 17, 2026

[TENTATIVE] ORDER: The Court SUSTAINS Defendants' demurrer to all seven causes of action. The Court TENTATIVELY DENIES leave to amend, pending the hearing on this demurrer.

Background

This is an employment case. In 2020, Plaintiff Phil Digennaro worked as a background actor for Defendants Entertainment Partners, Inc. and Central Casting, Inc. Plaintiff alleges that during the 2020 Covid shutdown, Defendants prevented him from taking sick leave by conditioning his leave on his ability to book roles. This put Plaintiff in an awkward position where the only way to use his sick time was to book background roles but then cancel them. Plaintiff alleges that this practice hurt his reputation as an actor. Moreover, Plaintiff alleges it was coercive and unlawful.

On May 12, 2026, Plaintiff filed suit against Defendants, alleging seven causes of action: 1) Violation of California Paid Sick Leave Law; 2) Failure to Pay Wages; 3) Violation of COVID-19 Supplemental Paid Sick Leave Laws; 4) Failure to Provide Payroll and Sick Leave Records; 5) Unfair Business Practices; 6) Interference With Statutory Rights / Retaliatory Policy; and 7) Breach of Contract / Implied Contract.

Now, Defendants demur to all seven of these claims as being facially time-barred.

Meet and Confer

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (CCP § 430.41(a) [emphasis added].) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3).)

Here, Defendants provide the declaration of Kelsey Javier, who states that on June 9, 2026, she sent Plaintiff a meet and confer letter discussing the issues raised in this filing. (Javier Decl. ¶ 3.) The parties were unable to reach an agreement on these issues. (Id. ¶ 4.) Notably, Defendants say nothing about an in person or telephonic meet and confer. Thus, Defendants have not met their meet and confer obligations. Generally, this Court would continue this motion and require the parties to meet and confer further. However, given the content of this demurrer, the Court concludes it would be more productive to hear this pleading on the merits.

Discussion

Defendants demur to all seven of Plaintiff's claims, arguing they are barred by the relevant statutes of limitation. (Demurrer, p. 3:6-12.)

A demurrer tests the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (CCP §§ 422.10, 589; see, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pled in the complaint are assumed to be true. (Id. at 994.) This means that, in order for Defendants' demurrer to succeed, Plaintiff's seven causes of action must be facially time-barred.

Statutes of Limitations

As a threshold matter, the Court notes that the statute of limitations for Plaintiff's claims range from one to four years.

Plaintiff's first cause of action for violation of California paid sick leave law has a statute of limitations of three years. (CCP § 338(a).) Plaintiff's second cause of action for failure to pay wages also has a statute of limitations of three years. (CCP § 338(a).) Plaintiff's third cause of action for violation of COVID-19 supplemental paid sick leave laws also has a statute of limitations of three years. (CCP § 338(a).) Plaintiff's fourth cause of action for failure to provide payroll and sick leave records has a statute of limitations of one year, as it is based on a penalty/forfeiture statute. (CCP § 340.) Plaintiff's fifth cause of action for unfair business practices has a statute of limitations of four years. (BPC § 17208 ["Any action to enforce any cause of action pursuant to [the Unfair Competition Law] shall be commenced within four years after the cause of action accrued"].) Plaintiff's sixth cause of action for interference with statutory rights has a statute of limitations of three years. (CCP § 338(a).) Finally, Plaintiff's seventh cause of action for breach of contract has a statute of limitations of four years. (Code Civ. Proc., § 337.)

This Case's Timeline

Here, Plaintiff bases all seven of their claims on actions taken by Defendants during the 2020 COVID pandemic. (Compl. ¶¶ 4-6, 14.) Plaintiff filed suit in May of 2026, five to six years after the alleged infraction. (Compl. p. 1.) As shown above, none of Plaintiff's claims have a statute of limitations longer than four years. Thus, all of Plaintiff's claims are facially time-barred.

In Opposition, Plaintiff raises two arguments. First, Plaintiff asserts that he has also alleged requests for his sick-leave balance and payroll records in 2025 and 2026, meaning his claims are not time barred. (Opp. p. 1:7-10.) Second, Plaintiff asks for leave to amend, because he claims he can identify specific correspondence between him and Defendants establishing more recent infractions. (Id. p. 3:1-20.)

The Court does not find these arguments convincing. First, while Plaintiff does make reference to a May 2026 request he made to Defendants (see Compl. ¶ 7), it is unclear from the allegations how this singular event can create the basis for seven separate causes of action. Thus, even taking this allegation as true, Plaintiff would lack sufficient facts to fully allege these claims.

For this reason, the Court SUSTAINS Defendants' demurrer to all seven causes of action.

Leave to Amend

The Court must now determine whether leave to amend is appropriate as to these five causes of action.

"Although leave to amend is to be liberally granted, it is not error to deny leave to amend when there is no 'reasonable possibility' that the plaintiff can state a cause of action." (Tola v. Bryant (2022) 76 Cal.App.5th 746, 755 [citing Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967].) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

Here, the Court is concerned that there is no reasonable possibility Plaintiff can amend this Complaint. The vast majority of Plaintiff's suit is based on infractions alleged to have occurred in 2020. In Opposition, Plaintiff states that they can identify specific correspondence between him and Defendants establishing more recent infractions. (Opp. p. 3:1-20.) However, Plaintiff's summary of this correspondence only shows a back-and-forth over Plaintiff's request for information, not any specific employment infractions. (Ibid.) Thus, it is not clear to this Court that Plaintiff can successfully establish all seven of their claims. Given that it is Plaintiff's burden to show that a pleading can be amended, the Court is tentatively inclined to deny leave to amend.

However, the Court intends to hear from Plaintiff on this issue at the hearing on this demurrer. If Plaintiff can explain to the Court the factual basis for how he will fix this pleading, the Court will grant leave to amend.

For these reasons, the Court TENTATIVELY DENIES leave to amend, pending the hearing on this demurrer.

Conclusion

The Court SUSTAINS Defendants' demurrer to all seven causes of action. The Court TENTATIVELY DENIES leave to amend, pending the hearing on this demurrer.

IT IS SO ORDERED, Defendants TO GIVE NOTICE.

September 17, 2026

Judge of the Superior Court